22-2-01596-37
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Complaint
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IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON IN AND FOR THE COUNTY OF WHATCOM

MICHAEL SCANLON and JONATHAN WEISS, Individuals
Plaintiffs,

vs.

THE CITY OF BELLINGHAM POLICE DEPARTMENT and THE THE CITY OF BELLINGHAM and JOHN and JANE 1-10

Defendants.

No. 22 2 01596 37

COMPLAINT FOR DAMAGES

INTRODUCTION

1. The State of Washington has mandated, by Proclamation of the Governor 21-14.1 et seq. "the proclamation", SARS-CoV2 (COVID-19) vaccinations for all persons employed by State agencies on or before October 18, 2021. Employees of the City of Bellingham (the City) were instructed to submit a request for accommodation, and the plaintiffs did submit such a request. Michael Scanlon and Jonathan Weiss (Plaintiffs) police officers employed by the Bellingham

GR-17 ORIGINAL

Police Department (BPD). The Plaintiffs applied for religious exemptions from the vaccine due to their sincerely held religious beliefs. No meetings were held to determine if an accommodation for people of faith who hold sincere religious convictions against ingesting the COVID-19 vaccines were made. These actions show a premeditated determination to deny accommodations and a failure on the part of the City to afford employees of faith an interactive accommodation process. Plaintiffs seeks redress for this violation of law.

2. The Plaintiffs seek relief in the form of declaratory relief and damages against Defendants, and all those in active concert, from abridging Plaintiffs' statutorily protected rights guaranteed to them by Title VII 42 USC §2000(e),

3. Plaintiffs also ask this Court for *de novo* review of the accommodation process and the failure of the City to actively engage therein.

JURISDICTION AND VENUE

4. This Court has jurisdiction over this action pursuant to the Revised Code of Washington 2.08.010

5. Plaintiff's claims for declaratory relief are authorized by RCW §7.24.010, Civil Rules 57 and 65, and the general legal and equitable powers of this Court, which empower this Court to grant the requested relief.

6. Venue is proper within this judicial district and division, pursuant to RCW §4.12.025, because the defendant, the City of Bellingham carrying out the business in the State and acting under color of law at headquarters located in Bellingham, Whatcom County.

7. This court has supplemental jurisdiction over federal claims under 42 U.S.C. §2000e.

PARTIES

8. Plaintiffs Michael Scanlon and Jonathan Weiss submitted a request for a religious exemption and was exempted, but could not be accommodated.

9. The City is charged by Proclamation 21-14 et seq and Executive Order 2021-2 et. Seq., with requiring all of its employees to be vaccinated or to submit a religious/medical exemption. BPD was the employer of both of the Plaintiffs in this case.

10. The true names and capacities, whether individual, corporate, associate, or otherwise, of Does 1 through 10, inclusive are unknown to Plaintiffs at this time, who therefore sues said Defendants by such fictitious names. Plaintiffs believe and allege that each of the fictitiously named Defendants are in some way responsible for, or participated in, or contributed to, the matters and things complained of herein, and are legally responsible in some manner. Plaintiffs will seek leave to amend this Complaint when the true names, capacities, participation, and responsibilities have been ascertained.

11. Plaintiffs are informed and believe, and thereon allege, that at all times herein mentioned the Defendants acted to discriminate and deprive them of their right to fair treatment and due process; in so doing, the things hereinafter complained of were acting within the course and scope of such agency and/or employment, and with the knowledge and consent of the remaining Defendants.

FACTS

23. On or about August 9, 2021, the Governor of Washington, Jay Inslee, passed Proclamation 21-14 et seq. requiring all state employees to obtain vaccination against the COVID-19 virus.

24. Proclamation 21-14 et seq. requires all State Agencies to direct their employees to subject themselves to a COVID-19 vaccination or face termination from their employment.

25. Proclamation 21-14 et seq. allows for religious accommodations under Title VII, 42 U.S.C. 2000e.

26. Proclamation 21-14 et seq. has been implemented by Defendant in a manner that does not allow for the religious accommodation process to be given meaningful dialogue regarding requests for accommodations, and thus deprives the plaintiff(s) of rights at law.

27. In response to the Governor's Proclamation, on September 21, 2021, Seth Fleetwood, the Mayor of the City, issued Executive order 2021-02 mandating that, "All City employees are required to be fully vaccinated against the COVID-19 virus as a condition of employment no later than December 3, 2021." In the same Executive Order Mayor Fleetwood states, "Employees seeking reasonable accommodations for legitimate medical reasons or sincerely held religious beliefs may apply for an accommodation no later than close of business on October 15, 2021."

28. Plaintiff Michael Scanlon, who was a Sargent on the BPD and Johnathan Weiss, who was a Detective for the BPD, applied for a religious exemption in a timely manner stating that they had sincerely held religious beliefs and convictions that prevented them from taking the COVID-19 vaccination.

29. In a letter dated November 2, 2021, the City accepted Mr. Scanlon's held sincerely held religious beliefs against the COVID-19 vaccination but they denied Mr. Scanlon's request for a reasonable accommodation. Even though the measures requested by Mr. Scanlon were they same measures the City was using before and after the mandate went into affect.

30. Mr. Scanlon was terminated for his job of more than 28 years on December 6, 2021 in violation of his religious and civil rights that he asserted under Title VII of the 1964 Civil Rights Act.

31. In a letter dated October 20, 2021, the City accepted that Mr. Weiss' had sincerely held religious beliefs against the COVID-19 vaccination but they denied Mr. Weiss' request for a reasonable accommodation. However, the City granted a medical exemption of a fellow detective that was a co-worked with Mr. Weiss.

32. As a result of the denial of the request for a religious accommodation under Title VII, the Plaintiffs have been terminated from their employment with BPD. This constitutes an adverse employment action, and comes on the heels of the Plaintiffs asserting their protected rights as a members of a protected class.

33. The Mr. Scanlon and Mr. Wiess received their right to sue letters from the Equal Employment Opportunity Commission on September 19, 2022 and September 30, 2022, respectively.

FIRST CAUSE OF ACTION

Violation of Title VII of the 1964 Civil Rights Act, 42 USC §2000e Against Defendants forFailure to Accommodate

34. Plaintiffs re-allege the facts above and incorporate those herein by reference as if fully alleged.

35. By submitting a request for religious accommodation under Title VII, the Plaintiffs engaged in actions protected by federal law.

36. Plaintiffs apprised the Defendants of their sincerely held religious beliefs and were exempted from the COVID-19 vaccine requirement.

37. The Defendants subjected the plaintiffs to adverse employment action and the plaintiffs lost their

jobs due to their sincerely held religious beliefs.

38. The Defendants refused to entertain requests for religious accommodations under Title VII, and engage in a meaningful analysis of the requested accommodations.

39. Wherefore, Plaintiffs bring this claim under 42 U.S.C. § 2000(e) and requests the relief set forth below in the prayer for relief.

PRAYER FOR RELIEF

Wherefore, Plaintiffs request that the Court enter judgment in their favor, and against the Defendants, for full relief, including the following:

1. Damages including lost wages, benefits, and all other lost income stemming from the discriminatory actions of Defendants.
2. Attorney's fees and costs; and,
3. Declaratory relief that the City and the BPD, failed to implement policies and procedures that encouraged engaging in a meaningful analysis of what accommodations may be made for those protected by Title VII when asserting their sincerely held religious beliefs against being vaccinated; in so doing the City and the BPD denied the Plaintiffs of their rights and entitlements at law.
4. Declaratory relief that the accommodation process failed to meet the minimum standards required at law under *De Novo* review.
5. Enter a judgment that the acts and practices of the Defendants complained of herein are in violation of state law and/or common law;
6. Award the plaintiffs compensation for all present, and future lost wages; including without

limitation and any other relief this Court deems necessary;

7. Award the plaintiffs the costs of this action, including the fees and costs of experts, together with reasonable attorney's fees.

8. Award the plaintiffs total damages in amount to be proven at the time of trial.

9. Grant the plaintiffs such additional and further relief as this Court deems necessary, just, and equitable.

Respectfully Submitted this 9th day of December, 2022.

/s/Harold H. Franklin, Jr.
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IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON IN AND FOR THE COUNTY OF **WHATCOM**

No

MICHAEL SCANLON and JONATHAN) WEISS, Individuals

Plaintiff(s),

and

AFFIDAVIT PURSUANT TO

THE CITY OF BELLINGHAM POLICE) DEPARTMENT, et al

GR 17(a) (2)

Defendant(s).

K. Martin declares and states:

1. I am employed with Seattle Legal and submit this declaration pursuant to GR 17 (a) (2) as recipient of **COMPLAINT FOR DAMAGES** received for filing with the Court in this matter.

2. I have examined the document. **COMPLAINT FOR DAMAGES** consists of **Seven (7)** page(s), including the signature page, and this Affidavit page. It is-completed and legible.

I declare under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct.

K. Martin

SUBSCRIBED AND SWORN BEFORE ME

December 14, 2022

ORIGINAL